

DETERMINATION FOR OTHER THAN FULL AND OPEN COMPETITION UNDER AUTHORITY OF FAR 12.201-1, implemented by Class Deviation 2026-O0028 (Revolutionary FAR Overhaul), and 41 U.S.C. 1901

1. Defense Logistics Agency (DLA) Troop Support, Subsistence Supply Chain, is the contracting activity.
2. The action being approved is the ability to solicit for DLA requirements on an Other than Full and Open Competition basis.
3. DLA Troop Support intends to enter a Simple Indefinite Delivery Contract (SIDC) contract for Coca-Cola Cans and Bottles for Department of Defense customers located in the States of Washington and Idaho. Pricing terms will be tiered pricing. The period of performance will be two years in length, starting from contract award. The following supplies are required to meet DLA's needs:

Coca-Cola Cans and Bottles:

CLIN	National Stock Number (NSN)	Item Description	Estimated Yearly Qty	Total Price
1	896001E113661	BEV, CARB, COLA, SWT, (COKE CLASSIC), 12 OZ CAN, 24 CANS/BOX	189	\$ 2,016.63
2	896001E113662	BEV, CARB, COLA, SF, (DIET COKE), W/ASPARTAME, 12 OZ CAN, 24 CANS/BOX	168	\$ 1,792.56
3	896001E113664	BEV, CARB, LEMON-LIME, SWT, (SPRITE), 12 OZ CAN, 24 CANS/BOX	441	\$ 4,705.47
4	896001E113665	BEV, CARB, MR PIBB, SWT, 12 OZ CAN, 24 CANS/BOX	121	\$ 1,291.07
5	896001E113669	BEV, CARB, COLA, SWT, (COKE), 20 OZ BOTTLE, 24/BOX	276	\$ 8,244.12
6	896001E113670	BEV, CARB, COLA, SF, (DIET COKE), W/ASPARTAME, 20 OZ BOTTLE, 24/BOX	264	\$ 7,885.68
7	896001E113736	BEV, CARB, DR. PEPPER, SWT, 12 OZ CAN, 24 CANS/BOX	1	\$ 10.67
8	896001E113774	BEV, CARB, COLA, SWT, (CLASSIC COKE), 12 CANS/PG, 2 PGS/BOX	195	\$ 2,080.65
9	896001E113775	BEV, CARB, COLA, SF, (DIET COKE), W/ASPARTAME, 12 CANS/PG, 2 PGS/BOX	199	\$ 2,123.33
10	896001E113776	BEV, CARB, ROOT BEER, SWT, (BARQ), 12 OZ CN, 24 CANS/BX	73	\$ 778.91
11	896001E113780	BEV, CARB, LEMON-LIME, SWT, (SPRITE), 12 CANS/PG, 2 PGS/BOX	81	\$ 864.27
12	896001E114107	BEV, CARB, ORANGE-LEMON-LIME, SWT, (MELLO YELLO), 12 OZ CAN, 24 CANS/BOX	70	\$ 746.90
13	896001E114423	BEV, CARB, COLA, CHERRY, SWT, (CHERRY COKE), 12 OZ CAN, 12 CANS/PG, 2 PGS/BOX	179	\$ 1,909.93
14	896001E114424	BEV, CARB, COLA, CHERRY, SWT, (CHERRY COKE), 12 OZ CAN, 24 CANS/BOX	92	\$ 981.64
15	896001E114425	BEV, CARB, COLA, CAFFEINE FREE, SWT, (CAFFEINE FREE COKE) 12 OZ CAN, 24 CANS/BOX	25	\$ 266.75
16	896001E115116	BEV, CARB, ROOT BEER, SWT, (BARQ'S), 12 OZ CAN, 12/PG, 2 PGS/BOX	169	\$ 1,803.23
17	896001E115526	BEV, CARB, ORANGE, (FANTA), 12 OZ CAN, 24/BOX	201	\$ 2,144.67
18	896001E115914	WATER, DRINKING, 16.9 OZ BT, 24/BOX	516	\$ 3,235.32
19	896001E116000	BEV, CARB, COLA, VANILLA (VANILLA COKE), 12 OZ CAN, 6/PG, 4 PGS/BOX	238	\$ 2,539.46
20	896001E116508	ELECTROLYTIC BEV, PUNCH, (POWERADE), 12 OZ PLASTIC BOTTLE, 24/BOX	91	\$ 1,668.03
21	896001E116751	BEV, CARB, ORANGE, SWT, (FANTA), REFRIGERATOR PACK, 12/PG, 2/BOX	30	\$ 320.10
22	896001E116983	BEV, SPORTS DRINK, FRUIT PUNCH, (POWERADE), 12 FL OZ BOTTLE, 24 PER BOX	153	\$ 2,804.49
23	896001E116984	ELECTROLYTIC BEV, MT. BLAST, (POWERADE), 12 OZ PLASTIC BOTTLE, 30/BOX	253	\$ 4,637.49
24	896001E117531	BEV, CARB, SPRITE ZERO, 12 OZ CAN, 6/PG, 4 PGS/BOX	59	\$ 629.53
25	896001E117952	BEV, CARB, SPRITE ZERO, 12 OZ CAN, 12/PG, 2 PGS/BOX	244	\$ 2,603.48
26	896001E119804	BEV, SPORTS DRINK, MOUNTAIN BLAST, (POWERADE), 12 FL OZ BOTTLE, 24 PER BOX	23	\$ 421.59
27	896001E220702	DRINK, ICE TEA, CHL, SWT, (G P), SWT, (GOLD PEAK), 18.5 FL OZ BT, 12 PER CS	247	\$ 3,519.75
28	896001E221606	DRINK, NUTRITIONAL, PROTEIN, core power, vanilla, RTD, 14 fl oz co, 12/cs	21	\$ 658.98
29	896001E900097	BEV, CARB, COLA, SF, (COKE ZERO), 12 FL OZ CN, 24 CANS/BX	245	\$ 2,614.15
		1 YEAR ESTIMATED TOTAL		\$ 65,298.85
		2 YEAR ESTIMATED TOTAL		\$130,597.70
		Total Maximum Dollar Value (2-yr) (2-tiered contract - each tier will be 12 months in length)		\$350,000.00

Controlled by: DLA Troop Support
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CUI Category: J&A
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4. This document serves as the contracting officer's determination that the circumstances of the contract action deem only one source reasonably available, as required by FAR Part 12.102-1. This determination is based on 41 U.S.C. 1901, Revolutionary FAR Overhaul (RFO) 12.102, Restricting Competition, and the applicable procedures are in RFO 12.201-1 Simplified Procedures, as implemented by the Department of War Class Deviation to FAR Part 12, Deviation 2026-O0028.
5. The use of this authority is necessary because Coca-Cola Cans and Bottles are all sole source, part-numbered (P/N) NSNs for which SWIRE PACIFIC HOLDINGS INC. DBA Swire Coca-Cola (CAGE 1HNG8) is the only known source.

These items are only available from Swire Coca-Cola and are the only items that can meet the minimum needs and requirements of the Government. Standard commercial practices dictate that only Coca-Cola products can be supplied in the current Coca-Cola equipment (dispensers and refrigerators). By providing this equipment, significant funds have already been invested into this site by Coca-Cola. The decision to buy brand name beverages is also largely geared towards service member preference and as morale boosting product. By sourcing directly from Coca-Cola, DLA gains direct access to the manufacturers' production schedules, technical specifications, and quality assurance processes. This streamlines communication and improves responsiveness to issues (e.g. product shortages or quality concerns) and gives DLA priority status for certain production runs, especially if contractual volumes are significant. Procuring directly with the sole source allows for cost savings by eliminating intermediary markups from third party wholesale distributors. All soda and beverages are proprietary, making it impossible to evaluate an exact replacement. Based on the standardized equipment and brand, logistics and quality control considerations, proprietary nature of the products, there is only one responsible source to meet this need.

To fulfill important feeding missions, the Air Force, Navy and Occupational Therapist Medical Facility (OT) Troop Customers of Washington and Idaho have the following Government requirements:

- Swire Coca-Cola provides cans and bottles to support the Department of Defense Troop customers in the Washington and Idaho zones on a skip day delivery schedule.
6. In accordance with FAR 5, this acquisition was synopsized in Contract Opportunities (www.SAM.gov) on March 24, 2026. This justification will be made available for public inspection, redacted as necessary, with the Solicitation, in accordance with RFO 12.102 and RFO 5.201(c)(3).

7. As the contracting officer, I hereby determine that the anticipated cost to the Government will be fair and reasonable based on submission and analysis of acceptable documentation other than certified cost or pricing data.
8. Market research has indicated that the only source for the proprietary commodity of Coca-Cola Cans and Bottles is the Swire Coca-Cola bottler and distributor in this geographic location. A Request for Information (RFI) was published on www.SAM.gov on February 11, 2026, for a period of eight (8) days. The RFI contained a questionnaire for interested vendors to fill out and describe their company's ability to fulfill the Coca-Cola and bottling requirements. Two (2) timely responses were received. Harvey Properties and Lawn Care INC and Emporium Exports LLC expressed interest, but indicated that they could not completely manufacture, bottle, and distribute all required schedule of items for this acquisition, which is a requirement of the solicitation. Receiving products directly from the source allows for better traceability. If there are any quality issues or concerns, the Government can track the products directly back to the source. Additionally, DLA Troop Support, Subsistence Market Fresh Acquisitions' contracting initiative is to solicit support as close to the commodity's source as possible. This protects the Government from any additional distribution costs or upcharges associated with acquiring product from a redistributor or 3rd party logistic company that would source the commodity in need and resell to the Government. This also reduces the risk of fraud by reducing middlemen in the supply chain.

Swire Coca-Cola, the incumbent, expressed interest and indicated they could completely manufacture, bottle, and distribute all the required schedule of items for this acquisition. The requirement for Coca-Cola Cans and Bottles currently cannot be met by any other firm other than Swire Coca-Cola. Coca-Cola's soda formula is one of the most famous and closely guarded trade secrets in business history, often cited as the archetype of how companies protect proprietary intellectual property. Scientists, journalists, and hobbyists have tried to reverse-engineer Coca-Cola for decades. While approximations exist, none have been confirmed as exact matches. A fully competitive item description for these unique subsistence-based products is not available.

It is standard commercial practice within the restaurant and hospitality industries, and larger institutions to have exclusive agreements with one major beverage manufacturer's products such as Coca-Cola or Pepsi Co. dubbed "pouring rights." The agreements include providing fountain machines, dispensers, and coolers to customers free of charge or deeply discounted. The manufacturers also offer preferential pricing to customers with such agreements.

9. The Government does not possess complete, unrestricted technical data necessary to solicit for these items using full and open competition procedures. Coca-Cola Bottling Company, who is the only manufacturer and bottler of Coca-Cola products, has retained proprietary rights to all licenses and specifications for all line items listed above that are required to support all customers on this acquisition's delivery schedule.

The subsistence-based items are currently in high demand for units stationed in the Washington and Idaho Region, which includes MCCHORD AFB (WA), along with various CONUS sites in Mt. Home AFB (ID), subsequent to Bremerton, Silverdale, Bangor, Everett, and Tacoma, Washington. These subsistence-based items, which require food service supplies, are deemed to be available only from Coca-Cola bottlers and distributors.

The Coca-Cola Company has existed as one of the United States' largest domestic companies since the late nineteenth century. Now globally recognized, the Coca-Cola brand cans and bottles are required to maintain high troop morale. Customers within the geographic area of this acquisition have requested the above specific line items provided.

10. The following sources have expressed interest in this acquisition:

- Swire Coca-Cola
- Harvey Properties and Lawn Care INC
- Emporium Exports LLC

11. A fully competitive item description for this unique proprietary schedule of subsistence-based items has not been developed and is not available. The Coca-Cola cans and bottles cannot be sourced from any other entity other than Swire Coca-Cola. DLA plans to discuss future brand-recompete strategies with Washington and Idaho-based customers. This will occur at such a time when the equipment is nearing the end of its useful life, facilities undergo remodeling, or any other major changes are needed to the facilities. Strategically implementing a change in one of these instances will reduce the disruptions to the facilities and service members.
12. As the Contracting Officer, I certify that the requirements which form the basis of this determination are accurate, that these supplies meet the Government's needs in accordance with applicable specifications and that this justification is accurate and complete to the best of my knowledge and belief.

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4/24/2026

DATE

Clarissa Caster

CLARISSA CASTER

Contracting Officer

DLA Troop Support Subsistence

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Source Selection Information – FAR 2-101 and 3.104